BOARD OF ADJUSTMENT

CONDITIONAL USE PERMIT CHECKLIST

ALL OF THE FOLLOWING MUST BE SUPPLIED:

1. Completed application including property owner's signature.
2. Legal description of the property including Deed Book, Page Number, and Group Number.
3. Names and mailing addresses of all adjoining property owners, including those located across any road, street, or highway.
4. Fee paid in full at the time of application.

CONDITIONAL USE PERMIT REVIEW:

In A-1 or A-2 Zones	$450.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In PF, R, or CONS Zones	$450.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In RS, RSE, SR-1, SR-2, SR-3, or R-1F Zones	$500.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In UR-1, UR-2, UR-3, Or MHP Zones	$500.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In C-1, C-2, C-3, C-4, O-1, O-1A, O-2, FMS, Or WD Zones	$800.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In I-1 or I-2 Zones	$800.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In I-3 or I-4 Zones	$1,000.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)
In SC Overlay Zone	$500.00 (flat fee) + $250.00 (legal ad, adjoining property owners, and sign posting notification) + $66.00 (CLUR)

Failure to supply any of the above information may result in delays.

The Board of Adjustment is a three or five member panel designed to take action on requests for Appeals, Variances, Conditional Uses, and Change of Nonconforming Uses. The hearing is open to the public and any interested party will have the opportunity to be heard. Action is normally taken during the meeting.

The Boone and Florence Board meetings are held on the second Wednesday of each month and the deadline for all applications is typically 22 days prior to the meeting.

The Union and Walton Board meetings are scheduled once an application is submitted for review.

It is recommended that an applicant review the requirements of the Zoning Regulations concerning Conditional Uses and the criteria for their review. Applicants should be prepared to answer questions concerning their application at the meeting.

SECTION 205.H
General Standards Applicable to All Conditional Uses

1. Will be harmonious with and in accordance with the general objectives, or with any specific objective of the County's comprehensive plan, a specific corridor plan and/or the zoning order.

2. Will be designed, constructed, operated, and maintained so as to be harmonious and appropriate in appearance with the existing or intended character of the general vicinity and shall not change the essential character of the same area.

3. Will be hazardous to existing or future neighboring uses.

4. Will be served adequately by essential public facilities and services such as highways, streets, police and fire protection, drainage structures, refuse disposal, water and sewer, and schools; or that the persons or agencies responsible for the establishment of the proposed use shall be able to provide adequately any such services.

5. Will create excessive additional requirements at public cost for public facilities and services and will be detrimental to the economic welfare of the community.

6. Will involve uses, activities, process, materials, equipment and conditions of operation that will be detrimental to any persons, property, or the general welfare by reason of excessive production of traffic, noise, smoke, dust, fumes, glare or odors.

7. Will have vehicular approaches to the property which shall be so designed as not to create an interference with traffic on surrounding public thoroughfares.

BCPC: May 2024